



Transport for London



Invitation to Tender Issued on behalf of The Greater London Authority

**ITT Title: Building the business case for devolution of skills
funding to London – specification for research and scenario
modelling**

Reference Number: GLA 81343

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Acronym dictionary

AEB – Adult Education Budget

BAME – Black Asian Minority Ethnic

DWP – Department for Work and Pensions

ESF – European Social Fund

ESIF – European Structural and Investment Funds

ESOL – English for Speakers of Other Languages

FE – Further Education

GLA – Greater London Authority

GVA – Gross Value Added

LIS – Local Industrial Strategy

UKSPF – United Kingdoms Shared Prosperity Fund

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PART 1

INTRODUCTION

1.1 Overview

Procurement for the Greater London Authority (GLA) is managed by Transport for London (TfL). For further information about:-

TfL visit www://tfl.gov.uk/

Procurement visit [Supplying TfL](#)

This Invitation to Tender (ITT) is a competitive procurement for the award of a Contract for the services detailed on the front page. This procurement is being conducted on behalf of the GLA in accordance with the GLA's obligation to provide best value whilst meeting their requirements. Any Agreement(s) awarded will be between the GLA and the supplier(s) who submit the most economically advantageous response(s) and represent best value to the GLA as further described in this document.

Bidders are required to respond to all sections of the Invitation to Tender.

1.2 Document Structure

This ITT contains 2 parts. These are:

Part 1, this section -The invitation/Instructions/specification (Sections 1 to 7). This part has all the information you need to formulate your submission and is not to be returned.

Part 2, the Appendix, (Sections A1 to A6). This part will contain your method statement responding to the requirements in our Specification, your proposed charges, Personal Service Company, the Supplier Diversity Monitoring form, Form of Tender and Conflict of Interest declarations. All sections are to be completed and returned.

2 BACKGROUND

2.1 Introduction

This section provides background information for bidders on this tender being co-ordinated by Transport for London.

The GLA requires a contract to be put in place prior to the commencement of work. A competitive tender is being conducted by TfL for this contract, the requirements of which are set forth within this document.

The Greater London Authority (GLA) is inviting applications from interested bidders to undertake research and scenario modelling to support the development of skills and employment related devolution options for London. The modelling work will include consideration of future options and the potential impacts of devolving responsibility and funding for the:

- UK Shared Prosperity Fund
- Careers Services
- Apprenticeships
- Traineeships
- All national government employment support programmes for Londoners with more complex needs; support services for people to access Universal Credit and support services for in-work, low paid Londoners on Universal Credit
- 16-18
- Advanced Learner Loans
- Other national funding initiatives in higher education or in higher level training and learning to help improve social mobility and productivity at a local level to address London's growing demand for higher level skills.

Greater London Authority Overview

The Greater London Authority (GLA) was established by the GLA Act 1999. Its staff is appointed by the [Head of Paid Service](#), the GLA's most senior official, and serve both the [Mayor](#) and the [London Assembly](#). The GLA is a unique form of strategic citywide government for London. It is made up of a directly elected Mayor—the Mayor of London—and a separately elected Assembly—the London Assembly. The Mayor has an executive role, making decisions on behalf of the GLA, and the Assembly has a scrutiny role. The GLA is based at City Hall, The Queen's Walk, London, SE1 2AA.

The corporate roles undertaken by GLA staff include:

- [Spending money wisely](#) – the GLA's budget and business planning documents clearly set out how Londoners' money is being spent
- [Maintaining high standards](#) – the GLA upholds the highest standards of conduct and maintains registers of [gifts and hospitality](#) and of interests for its Members and senior staff
- [Governing the organisation](#) – the GLA has developed a transparent and comprehensive approach to corporate governance which is overseen by its Corporate Management Team
- [Electing the Mayor and Assembly](#) – the GLA's Greater London Returning Officer (GLRO) oversees the administration of GLA elections which are held every four years

2.2 Transport for London – Overview

TfL is an executive body of the Greater London Authority, created in 2000 as the integrated body responsible for the Capital's transport system. Its primary role is to implement the Mayor of London's Transport Strategy and manage transport services across the Capital. TfL is made up of many predecessor organisations covering almost all transport modes in London, and therefore has the ingredients and accumulated experience to provide one of the largest integrated transport systems in the world. TfL comprises of different business units. These are Surface Transport, TfL Corporate, London Underground and Rail. TfL is a partner in Crossrail.

TfL manages London's transport network and is responsible for London's buses, the Underground, the Docklands Light Railway (DLR), London Overground, London River Services, Santander Cycle Hire, electronic vehicles and policing. TfL also runs Victoria Coach Station and the London Transport Museum. TfL is responsible for 360 miles (580km) of main roads, and all of London's 4,600 traffic lights. In addition, it manages the London Congestion Charging scheme and regulates the city's taxi and private hire trade. TfL also promotes a range of walking and cycling initiatives across the Capital.

2.3 Further Information

Further information can be found on the following website, and TfL expects that bidders will review the publicly available material relating to various aspects of this procurement visit:-

www.london.gov.uk/

2.4 Background / context of the services being procured

The Mayor of London's Skills for Londoners Strategy (launched June 2018) is the first dedicated adult education strategy produced by a London Mayor. It sets out the skills challenges London faces and a comprehensive evidence base underpinning the policies, priorities and actions required to achieve the Mayor's vision to make sure that all Londoners, employers and businesses get the skills they need to succeed in a fair, inclusive and thriving economy.

The London economy is competitive, highly skilled and productive, but significant inequalities and skills and employment-related challenges persist. We know that participation in classroom-based further education (FE) is falling, which is coinciding with reductions in adult skills funding¹. Furthermore, both in London and the rest of the UK there have been steep falls in training volumes over the last two decades. In London, training hours per person trained fell by 62% between 1997 and 2017 (65% over the UK as a whole). And less than a quarter of London employers trained staff towards a nationally recognised qualification in 2017 – the lowest of any region in England². Furthermore, whilst official unemployment figures are low in London, they mask significant and ongoing labour market disadvantage. In London today, there are over half a million people who are out of work and want a job. Women, disabled people, young people and some BAME groups experience significant labour market disadvantage, with below average employment rates and lower average earnings. There are variations in employment rates across different London boroughs, as well as different groups of Londoners.

Although progress is underway to tackle these issues, realising this vision is not without its challenges and many Londoners do not have the access to the opportunities that the city provides. Looking forward the Mayor is keen to tackle the root causes of low pay and in-work poverty, exclusion from the labour market, low levels of academic and careers progression, and skills gaps in key industries.

The Mayor's ambition is to work with London's employers, education providers and residents to improve access to education, training and employment support in London, improve diversity in London's key growth sectors and develop a skills system that underpins inclusive growth in London.

¹ GLA Economics (2018) Skills strategy for Londoners: Evidence base (via ESFA 'data cube').

² ONS Labour Force Survey: Department for Education (2018) Employer Skills Survey 2017

The Skills and Employment Vision

The GLA is working with London Councils to develop a vision for an integrated adult (16+) skills and employment offer for the capital, ensuring that all Londoners can access support to get on in life. This new vision will build on the Mayor's current skills strategy and London Councils' work on employment support to develop new policies, programmes and recommendations for systemic change to deliver on London government's vision for skills and employment in the capital. These policies and programmes will be developed in consultation with stakeholders, using updated evidence and learning from good practice examples/pilot programmes.

The skills and employment landscape in London and across the country has changed since the publication of the Skills for Londoners Strategy. The current and future impacts of Brexit are becoming clearer, the experience of preparing for AEB devolution has provided valuable insight into the way in which the FE provision can be improved and strengthened in London. However further thought needs to be given to the future sustainability of the adult education and training provision for the most disadvantaged Londoners after Brexit.

The Skills and Employment Vision will provide the GLA and London Councils with a chance to undertake an updated assessment of London's skills and employment strengths and challenges. It will present new evidence-based policy and programme proposals to empower Londoners to access opportunities in the capital, meet the needs of London's economy now and in the future, and to deliver a strategic, city-wide technical skills, employment support and adult education offer. A strong evidence base will ensure that London government is well positioned to make a robust case for future funding and responsibility from government, including the forthcoming UK Shared Prosperity Fund.

The work on this vision will coincide with the development of London's Local Industrial Strategy (LIS), which will be agreed with Government in early 2020. The London LIS will address the challenge of inclusive growth, building on existing Mayoral strategies. It will identify the economy's strengths and weaknesses and set out a clear approach to raising productivity and earning power, supported by a robust evidence base. It will also set out London's priorities for future funding for local growth. This is important in the context of the UK's impending departure from the European Union and the associated loss to London of access to European Structural and Investment Funds. The GLA and London Councils are working jointly to develop the 'People' section of London's Local Industrial Strategy, which will focus on skills and employment in the capital.

The Mayor's work on Devolution

Making the case for further devolution of powers and funding to London is a central priority for London Government. While devolution of the Adult Education Budget is an important and welcome first step, London needs the Government to go further. It needs a bespoke devolution deal that is responsive to London's economy, particularly considering London's scale, the potential impact that the UK's departure from the European Union will have on the supply of labour, and other skills challenges. These challenges include a growing population, increasing need for ESOL, basic, intermediate and higher-levels skills; employment levels consistently below the national average; underachievement in skills among certain groups throughout the education system, such as those from disadvantaged backgrounds; and increasing in-work poverty.

Addressing these challenges requires devolving funding, powers and responsibilities from central government. The Mayor and London Councils agree that:

- London's share of the UKSPF should be fully devolved to London Government.
- Local allocations of the UKSPF should be based on a fair measure of need, and this should not be regional Gross Value Added (GVA).
- London should receive at least as much money as it does currently for ESIF.
- The UKSPF should run on a much-simplified model compared to ESIF.
- The UKSPF should retain a large proportion of its focus on skills and employment.

The Mayor is also calling on central government to:

- Devolve funding for adult careers to London government, starting with the budget for the area based National Careers Service contract.
- Reform the Apprenticeship Levy into a Skills Levy; and devolve oversight and funding of the levy to London and other regional governments.
- Devolve responsibility/funding for traineeships to London.
- Take a 'local first' approach to all new government employment support programmes for people with more complex needs.

Alongside the Mayor's existing asks, the GLA is keen to explore making the case for:

- Influence over and potential devolving of education and training for 16-18.
- Influence over the eligibility and allocation of higher-level funding, including the Advanced Learner Loans to ensure it better meets the need of London.
- Influence over national funding initiatives in higher education or in higher level training and learning to help improve social mobility and productivity at a local level to address London's growing demand for higher level skills.

3 THE PROCUREMENT PROCESS

3.1 Introduction

This section describes in broad terms the award process following the issue of this ITT.

3.2 Any contract awarded as a result of this procurement exercise will be under the standard **Contract for Services** which can be viewed at:

<http://content.tfl.gov.uk/contract-for-services.pdf>

3.3 The Procurement Process

No information in this document is, or should be relied upon as, an undertaking or representation as to TfL's ultimate decision in relation to the Services.

TfL reserves the right without prior notice to amend the information provided, including, but not limited to, changing the timetable, the scope and nature of the procurement. This will be subject to the normal rules of public law, EU principles and procurement rules. In particular, TfL reserves the right to provide further information or supplement and / or amend the procurement process for this ITT. In no circumstances shall TfL incur any liability in respect of any changes.

TfL reserves the right without prior notice not to follow up this document in any way and / or to terminate the procurement process without awarding an agreement at any time. In such cases, TfL will not reimburse any expenses incurred by any person in the consideration and / or response to this document. All responses, proposals and submissions relating to the ITT are made entirely at the risk of the bidder.

TfL also reserves the right to award a Contract in total, in part, or not at all as a result of the tendering competition.

3.4 Format of Responses

The format for bidders' responses can be found in Section 4 of this document.

3.5 Bidders' Costs

Bidders are reminded that they are solely responsible for the costs that they incur as a result of their participation in this procurement.

3.6 Procurement Timeline

The key dates for the procurement process are stated in Section 7, The Specification (Table 4: Procurement Timetable). The final date for clarifications refers to questions about the specification. The final date for clarifications on the portal refers to questions about the process only. These dates are provided for bidders' guidance only, and are subject to change.

3.7 Contact with TfL

The point of contact for this procurement process are:

Alejandra Arroyo
Assistant Commercial Manager
Corporate Services – GLA Collaborative Procurement Team
Email: AlejandraArroyo@tfl.gov.uk

James Registe
Apprentice
Corporate Services – GLA Collaborative Procurement Team
Email: JamesRegiste@tfl.gov.uk

PLEASE NOTE: Bidders must submit any questions relating to this ITT via the clarifications/messaging facility on TfL's e-Tendering portal: <https://procontract.due-north.com>

Subject to the provisions in this section below, TfL will endeavour to respond within one (1) working day to questions that the bidders provide via TfL e-tendering portal during the procurement process. Bidders should be aware that:

- If, in TfL's view, questions are of a general nature, TfL will provide copies of questions in a suitably anonymous form, together with answers, to all bidders;
- if, in TfL's view, questions are of a specific nature, TfL will provide copies of questions, together with answers, only to the bidder seeking clarification; and
- The clarification process will be conducted on the basis of the equal, transparent and non-discriminatory treatment of bidders.

PLEASE NOTE: Clarification questions regarding the ITT received after **the time and date stated in Table 4** (Procurement Timeline) will not be answered. The clarification deadline stated on the portal relates to the submission process only, not the specification.

3.8 Compliant Responses

A compliant response must:

- Meet the submission arrangements and conditions set out in the **Submission Arrangements and Administrative Instructions** below.
- Address all category modules as further described in Section 4 (Bidders Responses) of this ITT.

3.9 Submission Arrangements and Administrative Instructions

This section describes submission arrangements for bidders' responses.

Bidders should upload their responses to TfL's online e-Tendering portal.

<https://procontract.due-north.com>

It is advisable to upload responses in good time before the deadline as responses cannot be made via the portal if the submission deadline has passed. It is your responsibility to ensure you have enough time to upload your submission.

Submissions must only be made via this eTendering portal.

3.10 Rejection of Responses

Responses may be rejected if:

- They are not submitted by the submission date and time as stated on the portal; or
- The complete information called for is not given at the time of responding; or
- If they are in any other way deemed non-compliant by TfL (See 3.8 above).

Submissions made by any means, other than the portal, or to additional recipients, without the prior agreement of the TfL Commercial Services department will be rejected.

4 BIDDERS RESPONSES

4.1 Introduction

The purpose of this section is to provide instructions to bidders on how to structure and present their response to enable TfL to carry out its evaluation of the bidders' responses.

Bidders should place emphasis upon brevity and clarity in all aspects of their response. Responses should be clear and concise, limited to 10 A4 sides (excluding CVs and annexes); contain only relevant information and be structured in line with point 6.2, Table 1: Evaluation Criteria (Technical).

- All documents and materials which comprise the response should be written in English;
- All responses will become the property of TfL and will be subject to the Freedom of Information Act 2000 (see Section 5.2 of this ITT for further details).

Bidders' responses are to comprise elements:

- The Technical Submission Appendix 1 (A1)
- The Commercial Submission A2
- Notices and Declarations A3/A4/A5/A6

The above must not contain pricing information; if it does your bid may be disqualified.

These must be submitted as three separate files zipped together.

The Technical Submission must cover all the Services required as detailed in the Specification detailed in Section 6. Bidders' responses should demonstrate the bidder's ability to meet the requirements.

The Commercial Submission will consist of the bidder's response in the completed Appendix A2 Commercial Submission.

The Notices and Declarations will consist of the Form of Tender, Conflict of Interest Declaration, Personal Service Company and The Supplier Diversity Monitoring Form.

5 NOTICE TO BIDDERS

5.1 Confidentiality

The contents of this Invitation to tender are strictly confidential and shall not be disclosed to any third party other than for the purpose of developing the bidders' proposals, after having obtained a similar obligation from that third party to treat any such information disclosed as strictly confidential. Furthermore, the bidder shall not disclose any details of its proposals to any other person.

Bidders should be aware that this ITT and any response to this ITT may be disclosed under the Freedom of Information Act 2000 (FOIA).

5.2 Freedom of Information Act

In relation to this ITT bidders shall provide all assistance reasonably requested by TfL to ensure that TfL complies with the Freedom of Information Act 2000 and all related or subordinate legislation.

TfL and its subsidiaries are obliged by law under the FOIA to supply the public with information relating to all areas of its work and are under a duty to operate with openness and transparency unless an exemption applies.

TfL shall be responsible for determining whether information is exempt information under the FOI Legislation and for determining what information will be disclosed in accordance with the FOI Legislation. Further information is available from: www.tfl.gov.uk/foi

An individual may request:

- To be informed whether TfL holds information of the description requested; and
- If so, to have that information communicated to him or her.

Without prejudice to TfL's rights and obligations under the FOIA, bidders should be aware that the rules about disclosure apply regardless of where the information held by or on behalf of TfL originated from, and as such the following types of information (without limitation to the generality of the foregoing) may be subject to disclosure:

- Information in any tender submitted to TfL;
- Information in any contract to which TfL is a party (including information generated under a contract or in the course of its performance);

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- Information about costs, including invoices submitted to TfL;
- Correspondence and other papers generated in any dealing with the private sector whether before or after Agreement award.

Bidders should note that this ITT once published by TfL may be made available to the public on request and:

- They must, in their response to this ITT and in any subsequent discussions, notify TfL of any information which they consider to be eligible for exemption from disclosure under the FOIA. Such information must be referred to as “Reserved Information” and identified in the bidders’ responses in the form of the table set out in Appendix 3: Reserved Information to this Volume 1. Information not identified as Reserved Information may be made available by TfL on request. Even information identified as Reserved Information may have to be disclosed;
- All decisions relating to the exemption and disclosure of information will be made at the sole discretion of TfL. It should be noted that TfL may disclose bidders’ justifications for exemption and any additional information relating to that which is classified as Reserved Information;
- Although TfL is not under any obligation to consult bidders in relation to requests for information made under FOIA, TfL will endeavour to inform bidders of requests wherever it is reasonably practicable to do so;
- Any Agreement with TfL will require bidders to supply additional information, and/or provide other assistance, pursuant to any FOIA request received by TfL;
- TfL’s decision on applying an exemption and, therefore, refusing a request for information by a member of the public may be challenged by way of appeal to the Information Commissioner. The Information Commissioner has the statutory power to direct that the information be disclosed.

Additional information and guidance:

- The exemption that applies to information that would prejudice commercial interests if disclosed is a 'qualified' exemption under the FOIA. This means that TfL is required to consider whether, in all the circumstances prevailing at the time a request is received, the public interest in disclosure outweighs the commercial interest in upholding the exemption;
- Information which is exempt under the rules governing commercial matters will not normally be withheld for more than seven years after completion of the Agreement;
- Information relating to the overall value, performance or completion of a contract will not be accepted as Reserved Information, although TfL may choose to withhold such information in appropriate cases, at its sole discretion;
- Information relating to unit prices or more detailed pricing information may be specified by the bidder as Reserved Information;
- For further information and guidance, the attention of the bidders is drawn to the Lord Chancellor's Code of Practice issued under section 45 of the FOIA (see www.justice.gov.uk/information-access-rights/foi-guidance-for-practitioners/code-of-practice).

5.3 Equality and Diversity

TfL is committed to proactively encouraging diverse suppliers to participate in its procurement processes for goods, works and services. It will provide a level playing field of opportunities for all organisations including Small and Medium Enterprises and Black, Asian and Minority Ethnic businesses and other diverse suppliers. Consistent with its obligations as a Best Value authority and in compliance with EU and UK legislation, TfL's procurement process will be transparent, objective and non-discriminatory in the selection of its suppliers. TfL will actively promote diverse suppliers throughout its supply chains.

5.4 Responsible Procurement

TfL will proactively conduct its procurement process in line with the GLA Group Responsible Procurement Policy. Within its obligations as a Best Value authority, and in compliance with EU and UK legislation, TfL will adopt the principles of 'Reduce, Reuse, Recycle' and 'Buy Recycled'. TfL is committed to applying these principles in its procurement of goods, works and services, where the required criteria for performance and cost

effectiveness can be met. TfL will actively promote 'Responsible Procurement' throughout its supply chain.

Further details on TfL's policies on Responsible Procurement can be found on TfL's website at:

<https://tfl.gov.uk/corporate/publications-and-reports/procurement-information#on-this-page-1>

TfL expects the Service Provider to have in place and implement policies to promote these principles

5.5 Disclaimer

Neither the receipt of this document by any person, nor the supply of any information is to be taken as constituting the giving of investment advice by TfL or any of its advisers to any bidder.

Information provided does not purport to be comprehensive or verified by TfL or its advisers. Neither TfL nor its advisers accept any liability or responsibility for the adequacy, accuracy or completeness of any of the information or opinions stated in the ITT documents.

No representation or warranty, express or implied, is or will be given by TfL or any of its officers, employees, servants, agents or advisers with respect to the information or opinions contained in the ITT or on which the ITT is based. Any liability in respect of such representations or warranties, howsoever arising, is hereby expressly disclaimed but nothing in this ITT shall exclude or restrict liability for fraudulent misrepresentations.

No information in this document is, or should be relied upon as, an undertaking or representation as to TfL's ultimate decision in relation to the Services. TfL reserves the right without prior notice to change the procurement process detailed in this ITT or to amend the information provided, including, but not limited to, changing the timetable, the scope and nature of the procurement and the procurement process. In particular, TfL reserves the right to issue circulars to bidders providing further information or supplementing and/or amending the procurement process for this ITT. In no circumstances shall TfL incur any liability in respect of any changes. This will be subject to the requirements of public law, the UK and EC procurement rules and EC Treaty rules and general principles.

Direct or indirect canvassing of the Mayor, any members of the Greater London Authority, employees, directors, board members, agents and advisers of TfL and any of its subsidiaries by any person concerning the Agreement or any related procurement process and any attempt to procure

information from any of the foregoing concerning the Agreement may result in the disqualification of the person and/or the relevant organisation from consideration for the Agreement.

TfL reserves the right without prior notice not to follow up this document in any way and/or to terminate the procurement process without awarding an Agreement at any time.

5.6 Good Faith

In submitting a response to this ITT, each bidder undertakes to provide its submission in good faith and that it will not at any time communicate to any person (other than TfL, its advisers or third parties directly concerned with the preparation or submission of its response) the content (or approximate amount) or terms (or approximate terms) of its response or of any arrangements or agreements to be entered into in relation to its response.

In submitting a response to this ITT each bidder undertakes that the principles described in this section have been, or will be, brought to the attention of all consortium members, sub contractors, and associated companies which are or will be providing services or materials connected with their response.

5.7 Accuracy of Information

In submitting a response to this ITT each bidder undertakes that:

- all information contained in any response at any time provided to TfL in relation to the Agreement is true, accurate and not misleading and that all opinions stated in any part of a response are honestly held and that there are reasonable grounds for holding such opinions;
- Any matter that arises that renders any of such information untrue, inaccurate or misleading will be brought to the attention of TfL immediately.

5.8 Intellectual Property Rights

All intellectual property rights in this ITT and in the information contained or referred to in it shall remain the property of TfL and/or third parties, and bidders shall not obtain any right, title or interest therein.

5.9 Changes in Circumstances

Each bidder is required to inform TfL promptly and in any case no later than fourteen (14) days, after the occurrence of:

- Any changes to any information provided to TfL as part of the ITT process; or
- Any other change to its circumstances, which may be expected to influence TfL's decision on its suitability for qualification for receipt of this ITT or to be selected as a Service Provider.

TfL reserves the right to approve (subject to conditions) or reject the changes referred to above (including any changes to the basis on which the bidder pre-qualified to receive this ITT). A rejection of the changes may result in the bidder being excluded from further participation in the procurement process.

5.10 Conflict of Interest

If any conflict of interest or potential conflict of interest between a bidder, its advisers, TfL's advisers or any combination thereof becomes apparent to that bidder, it shall inform TfL immediately. In such circumstances, TfL shall, at its absolute discretion, decide on the appropriate course of action. If TfL becomes aware of any conflict of interest that the bidder has not declared to TfL, the bidder may be disqualified from the procurement process.

5.11 Bid Costs

TfL will not be liable to any person for any costs whatsoever incurred in the preparation of bids or in otherwise responding to this ITT.

5.12 Selection of Service Providers

Before selecting any bidder as a Service Provider, TfL reserves the right to check and confirm:

- The financial standing of that bidder (including each member of any consortium and of any key sub contractor); and/or
- The qualification and resources of that bidder, including verifying all or part of its tender.

5.13 Data Transparency

The UK government has announced its commitment to greater data transparency. Accordingly TfL reserves the right to publishing its tender documents, contracts and data from invoices received. In so doing TfL may at its absolute discretion take account of the exemptions that would be available under the Freedom of Information Act 2000 and Environmental Information Regulations 2004.

5.14 Best and Final Offer (BAFO)

Following evaluation of the bids received, GLA may, at its discretion, invite the bidders (by application of the evaluation criteria set out in the ITT) to prepare and submit further opportunities to adjust the price element of their submission. At GLA's discretion there may be up to two such opportunities for adjustment. This is an optional stage in the Tender Process and will only be included where the GLA considers it would be helpful or beneficial to do so.

6. EVALUATION

6.1 Introduction

The evaluation process will be conducted in a fair and transparent manner in accordance with UK and EU procurement rules.

The award criteria have been developed to assist us in deciding which tenderer(s) to award a contract on the basis of the Most Economically Advantageous Tender. They are for use by tenderers who have been invited to tender for the proposed contract, their professional advisers and other parties essential to preparing responses to the Invitation to Tender and for no other purpose.

Failure to disclose all material information (facts that we regard as likely to affect our evaluation process), or disclosure of false information at any stage of this procurement process may result in ineligibility for award. You must provide all information requested and not assume that we have prior knowledge of any of your information.

We actively seek to avoid conflicts of interest and reserve the right to reject tenderers as ineligible where we perceive an actual or potential conflict of interest. "You must carefully consider all potential conflicts of interest prior to submission of your completed tender and include the completed and signed Conflict of Interest declaration form provided in this ITT"

Appendix A6 (pass/fail) – a negative response to questions 1b) & 2 will result in your tender being rejected.

Complete tenders will be evaluated by TfL Commercial staff, supported by the internal project team for the Strategic Review:

- Each question will be scored as indicated;
- Indicated weightings will be applied to scored responses;

Following the initial evaluation, it may be necessary to seek clarifications. Marks will be given in the range of 0 to 4 and will be awarded according to the tenderer's response, in accordance with the following scoring matrix:

6.2 Evaluation Criteria

TfL will evaluate the Tenderers' submissions against the following criteria:

Table 1: Evaluation Criteria (Technical)

Technical	A strong track record of policy development, including an understanding of devolution, and skills and employment policy	20%
	Experience of undertaking research/scoping/scenario planning to create an evidence base for policy documents/strategies	15%
	Experience of economic modelling, and cost/benefit analysis of policy proposals	15%
	Knowledge of the Mayor's priorities in relation to devolution, and employment and skills	10%
	An outline project plan, including monitoring progress, resourcing and itemised costings within proposed timeframes	10%
Commercial	Fee proposal	30 %
IR35	Pass/Fail	

Scoring less than a 2 against the technical criteria will result in a fail.

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Table 2: Scoring Matrix (Technical)

0 - Unacceptable	The response does not meet the requirement. Does not comply and/or insufficient information provided to demonstrate that the Tenderer has the ability, understanding, experience, skills, resource & quality measures required to provide the supplies/services, with little or no evidence to support the response,
1 - Poor	Some minor reservations of the Tenderer's relevant ability, understanding, experience, skills, resource & quality measures required to provide the services, with little or no evidence to support the response
2 – Meets Requirements	Demonstration by the tenderer of the relevant ability, understanding, experience, skills, resource & quality measures required to provide the services, evidence to support the response
3 - Good	Above average demonstration by the tenderer of the relevant ability, understanding, experience, skills, resource & quality measures required to provide the services. Response identifies factors that will offer potential added value, with evidence to support the response.
4 - Outstanding	Exceptional demonstration by the tenderer of the relevant ability, understanding, experience, skills, resource & quality measures required to provide the services. Response identifies factors that will offer potential added value and continuous improvement with evidence to support the response.

Table 3: Evaluation (Commercial)

The method of evaluating the financial aspect is:

Inverse proportion of lowest cost:

$$\text{Weighted Score} = \frac{\text{Lowest Bid Cost}}{\text{Bid Cost}} \times \text{Commercial (Price) Weighting}$$

7. SPECIFICATION

Services to be provided and other relevant information:

1	Inception Meeting
2	Interim Report, to include • A brief overview of the current skills and employment system with reference to the proposed areas for devolution, including the extent to which England's skills system is centralised and fragmented. • A review of the evidence on the impacts of devolved skills and employment policies and funding in the UK and internationally if appropriate. • Scoping of the various devolution options relating to each of the Mayor's devolution priorities. This should include developing a logic chain of how the interventions may work and rationale for devolution of the specific contexts, alongside evidence of how devolution of post-16 skills, education and employment support has worked in the devolved nations of the UK and could be applied to in London. • An outline of the challenges and the opportunities presented by devolution. This should consider the impact of the loss of ESF and the absence of any clear commitment to the allocation of replacement funding in each region through the UKSPF. Consideration should also be given to future capital funding for FE, increasing funding pressure on the devolved and national pots of AEB funding to meet demand. External factors should also be assessed, such as changing government policy (including the introduction of T-levels), loss of jobs post-Brexit, threats to community cohesion post-Brexit, impact of potential immigration changes to skills supply, the possibility of employers relocating following Brexit, potential caps on future apprenticeship funding, changes in labour market patterns (such as an increase in employment and in-work poverty) and economic uncertainty.
	2.1 Provide an interim draft report to the GLA contact
	2.2 Present to the Skills & Employment Vision Steering Group
	2.3 Finalise Interim Report
3	Further work on full report, to include: • An examination of the challenges and opportunities presented by

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	devolution for each of the identified funding streams; • Scenario modelling of devolution options relating to the Mayor's priority devolution areas. This should include an illustrative economic cost/ benefit analysis and assessment of any 'devolution dividend' from devolution of these areas. • An assessment of the extent to which the outcomes sought in the Skills for Londoners Strategy and the forthcoming Skills Vision can be achieved through devolution to the Mayor and/or London Government.
	3.1 Provide a draft full report
4	Publish Report
5	Present to the Skills for Londoners Board
6	Present to the Skills for Londoners Business Partnership

Table 4: Procurement Timetable

Procurement activity	Timeframe guide
ITT Issued	23/04/2019
ITT Clarification/Messages Deadline	29/04/2019 12:00
Tenders Due	10/05/2019 12:00
Evaluation of Tenders	10/05/2019 – 15/05/2019
Possible Submission Clarifications Interviews	15/05/2019 to 22/05/2019
Notify Bidders	w/c 22/05/2019
Preferred bidder confirmation of commitments, contract signing	24/05/2019 – 28/05/2019
Contract start and mobilisation	24/05/2019 – 28/05/2019

PART 2

APPENDIX A1, TECHNICAL SUBMISSION

The Technical Submission will be your comprehensive method statement detailing your response to the specification in Section 7.

Your attention is drawn to Section 3, The Procurement Process and Section 4, Bidders Responses above:

Submissions must only be made via this eTendering portal. Submissions made by any other means, or to additional recipients, without the prior agreement of the TfL Commercial Services department will be rejected.

Contact the Commercial Agents named in Section 3.7 to make alternative arrangements for the receipt of your submission.

DO NOT INCLUDE ANY FINANCIAL INFORMATION IN THIS SECTION OF YOUR RESPONSE. TO DO SO MAY INVALIDATE YOUR SUBMISSION.

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APPENDIX A2, COMMERCIAL SUBMISSION

	Item description/deliverable	Strict Deadlines	Fixed Fee - Cost of that item (exc. VAT)	Estimate of time taken to complete the item/deliverable in days
1	Inception Meeting			
2	Interim Report, to include • A brief overview of the current skills and employment system with reference to the proposed areas for devolution, including the extent to which England's skills system is centralised and fragmented. • A review of the evidence on the impacts of devolved skills and employment policies and funding in the UK and internationally if appropriate. • Scoping of the various devolution options relating to each of the Mayor's devolution priorities. This should include developing a logic chain of how the interventions may work and rationale for devolution of the specific contexts, alongside evidence of how devolution of post-16 skills, education and employment support has worked in the devolved nations of the UK and could be applied to in London. • An outline of the challenges and the opportunities presented by devolution. This should consider the impact of the loss of ESF and the absence of any clear commitment to the allocation of replacement funding in each region through the UKSPF. Consideration should also be given to future capital funding for FE, increasing funding pressure on the devolved and national pots of AEB funding to meet demand. External factors should also be assessed, such as changing government policy (including the introduction of T-levels), loss of jobs post-Brexit, threats to community cohesion post-Brexit, impact of potential immigration changes to skills supply, the possibility of employers relocating following Brexit, potential caps on future apprenticeship funding, changes in labour market patterns (such as an increase in employment and in-work poverty) and economic uncertainty.			
	2.1 Provide an interim draft report to the GLA contact.			
	2.2 Present to the Skills & Employment Vision Steering Group.			

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	2.3 Finalise Interim Report			
3	Further work on full report, to include: • An examination of the challenges and opportunities presented by devolution for each of the identified funding streams; • Scenario modelling of devolution options relating to the Mayor's priority devolution areas. This should include an illustrative economic cost/ benefit analysis and assessment of any 'devolution dividend' from devolution of these areas. • An assessment of the extent to which the outcomes sought in the Skills for Londoners Strategy and the forthcoming Skills Vision can be achieved through devolution to the Mayor and/or London Government			
	3.1 Provide a draft full report	30 July 2019		
4	Publish Report	01 September 2019		
5	Present to the Skills for Londoners Board	03 October 2019		
6	Present to the Skills for Londoners Business Partnership	23 October 2019		
		Totals:		

PLEASE NOTE: The *Fixed Fee – Cost of that Item* column must include the maximum cost of delivery for the task. It should match your submission under the second table in this appendix and include the maximum travel and related expenses. Please note that expenses must be pre-approved by the designated GLA contact **before** they are incurred/committed.

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Breakdown of total cost (Fixed/Capped Rates)			
Personnel (Name - Role)	Fixed/Capped Day Rate £	Estimated no. Days	Total cost (£, exc VAT)
Totals:			

Please detail in your submission what the expenses apportionment of the Fixed Day Rate is.

PLEASE NOTE: The *Fixed/Capped Day Rate* column must include the maximum day rate fees chargeable, including maximum travel and related expenses. Please note that expenses must be pre-approved by the designated GLA contact **before** they are incurred/committed.

APPENDIX A3, SUPPLIER DIVERSITY MONITORING FORM

The GLA encourages tender applications from all sections of the community. We endeavour to appoint contractors who are committed to promoting equality of opportunity in their own employment and service delivery, and who can demonstrate an ability to assist the GLA achieve its statutory responsibilities in this important area.

The GLA is also committed to maximising the diversity of our supplier base. In order to help us monitor whether we are successful in this aim we ask all applicants to complete this form.

The information provided below will NOT be scored and is kept confidentially; therefore this information will not affect your application in any way.

Serial	Question	Answer
1	Contract number/reference <i>(to be completed by Authority)</i>	GLA 81343
2	Contract start date <i>(to be completed by Authority)</i>	
3	Contract finish date <i>(to be completed by Authority)</i>	
4	Number of employees in your Company	
5	Your enterprise turnover p/a in thousands	
6	Is your enterprise majority BAME ¹ owned/led ² ?	
7	Is your enterprise majority owned/led by women?	
8	Is your enterprise majority owned/led by disabled people?	
9	Is your enterprise majority LGBT ³ owned/led?	
10	What is the % of BAME staff in your enterprise workforce?	
11	What is the % of women staff in your enterprise workforce?	
12	What is the % of disabled staff in your enterprise workforce?	
13	What is the % of LGBT staff in your enterprise workforce?	
14	What % of your workforce resides in London?	

¹ **BAME:** Black, Asian, Minority Ethnic, know until recently as BME. Black is an inclusive term for all ethnic groups who have a common experience of discrimination on the basis of their skin colour. An ethnic minority community is an ethnic group that is numerically smaller than the predominant white group in Britain. A BAME Company is one which is majority BAME owned or led.

² Ownership of Third Sector organisations relates to how they are governed. Third Sector organisations are governed through a management committee made up (volunteer) trustees. In this case 51% or more trustees should be from BAME, women, disabled, LGBT groups in order for this organisation to be deemed as being minority owned/led.¹

LGBT,: Lesbian Gay, Bisexual and Transgender.

APPENDIX A4, FORM OF TENDER (PART 1)

I confirm and accept that:

1. The information provided in the Invitation to Tender (ITT) document GLA 81343 was prepared by Transport for London ("TfL") in good faith. It does not purport to be comprehensive or to have been independently verified. Neither TfL nor any member of the TfL group company has any liability or responsibility for the adequacy, accuracy, or completeness of, and makes no representation or warranty, express or implied, with respect to, the information contained in the Invitation to Tender document or on which such documents are based or with respect to any written or oral information made or to be made available to any interested Supplier or its professional advisers, and any liability therefore is excluded.
2. The provisions within section 5, 'Notice to Bidders', of the ITT has been and will continue to be complied with.
3. Nothing in the ITT document or provided subsequently has been relied on as a promise or representation as to the future. TfL has the right, without prior notice, to change the procedure for the competition or to terminate discussions and the delivery of information at any time before the signing of any agreement.
4. TfL reserves the right (on behalf of itself and its group companies) to award the contract for which tenders are being invited in whole, in part or not at all.
5. This tender shall remain open for acceptance by TfL and will not be withdrawn by us for a period of 3 months from the date fixed for return.
6. The information provided by us is true and accurate.

APPENDIX A4, FORM OF TENDER (PART 2)

Having made due allowances for the full requirement in the ITT documents we hereby offer to provide the Services to TfL (or any member of the TfL group) in accordance with the terms and conditions stated therein for the rates detailed in Appendix A2 – Financial Submission.

Note, by completing box 1 you agree to the terms and conditions of contract in full with no amendments. If you sign box 1 and propose alternative conditions of contract elsewhere in your submission it will be treated as if you had signed box 2.

If you do not wish to accept these conditions you should complete box 2. You should submit your bid clearly detailing your reasons for non-acceptance. If we offer a contract in the belief that your bid is compliant and you then attempt to negotiate alternative conditions we **WILL WITHDRAW** our offer.

1.	I agree to accept the Conditions of Contract attached to this ITT. GLA 81343	
Name		Date
Signed		

2.	I DO NOT agree to accept the Conditions of Contract attached to this ITT. I have proposed alternatives as detailed in an appendix to this Form of Tender. I/We understand that any quote that is qualified in this way may not be considered.	
Name		Date
Signed		

APPENDIX A5, CONFLICT OF INTEREST DECLARATION

In responding to the questions below the signatory is to include in its consideration of any matters, private interests or relationships which could or could be seen to influence any decisions taken or to be taken, or the advice you are giving to GLA, or that may result in an adverse impact on competition for the purposes of this procurement.

The types of interests and relationships that may need to be disclosed include investments, shareholdings, trusts or nominee companies, company directorships or partnerships, other significant sources of income, significant liabilities, gifts, private business, employment, voluntary, social or personal relationships that could, or could be seen to impact upon your responsibilities and existing or previous involvement that could create a potential, actual or perceived conflict.

If response is yes to any of the questions below please provide full details as a separate attachment

GLA 81343 Questions	Yes / No
Are you affiliated or otherwise connected (e.g. in joint venture whether incorporated or unincorporated, partnership, alliance or as a sub-contractor/sub-consultant) with any firm that supplies products, works or services to GLA or is currently tendering to do so?	
In the past 12 months, to the best of your knowledge, has any member of your organisation or your supply chain had any direct or indirect involvement (by way of trading, sharing information, participating in industry for or jointly delivery goods/works/services) with any other company acting as a supplier to GLA?	
At any time in the past 12 months, to the best of your knowledge, has any member of your organisation or supply chain received any gift (other than promotional items) or hospitality from a supplier or employee to GLA?	
At any time in the past twelve months, have you or anyone from your organisation or supply chain given any gift (other than promotional items) or hospitality to an employee of GLA?	
Is there any occasion where you or members of your organisation or supply chain may use TfL resources (equipment, space, supplies or paid individuals) in performing paid or unpaid activities for organisations other than GLA?	
Are there any other activities not reported under the previous questions that may give rise to a conflict of interest with respect to their work with TfL e.g. through personal or working relationships with current or former employees or through prior employment with GLA or third party suppliers or in connection with this tender?	

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I, as representative of all companies associated with the Applicants submission, hereby confirm that I have read and understood the above statements and that I will make full disclosure of interests, relationships and holdings that could potentially result in a conflict of interest.

I agree that if I become aware of any information that might indicate that this disclosure is inaccurate, I will notify TfL promptly of becoming aware of such information and undertake to take such action as TfL may reasonably direct.

Signature:	
Name:	
Designation:	
Company:	
Date:	

APPENDIX A6, PERSONAL SERVICE COMPANY**Appendix A6 (Pass/Fail)**

(Please Note a negative response to questions 1b) & 2 will result in your tender being rejected)

1. A.1) Are any of the individuals providing their services via a personal service company (i.e. typically a limited company with 1 or 2 directors and where some of the individuals providing the services hold more than 5% share in the company) or via a partnership (typically where the individual providing the services is a partner, and is entitled (alone or with one or more relatives) to 60% or more of the profits ? YES/NO

A.2) Do you have less than 20 employees? YES/NO

B) If you have answered YES to both 1 A.1 and 1 A.2), please confirm that should you be awarded the contract to deliver this requirement you agree to undertake an employment status assessment and to accept the GLA's decision to alter the engagement route if the arrangement falls within IR35 Intermediaries Legislation. YES/NO

2. Please confirm that should you engage personal service companies or partnerships to deliver the Services you are expressing an interest in, you will inform GLA that this is the case and co-operate with GLA in relation to any questions raised to identify whether the Intermediaries Legislation applies; and if GLA confirms that it does, you will make all relevant deductions in accordance with Chapter 10 Part 2 ITEPA 2003. YES/NO